



University of Science and Technology of Southern Philippines

Technology Promotions and Commercialization Office



# IP Applications and Procedures

Prepared by: **Noreza Aleno**

TPCO Staff– USTP System

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**Innovation and Technology Support Office**

[ustp.itso@ustp.edu.ph](mailto:ustp.itso@ustp.edu.ph)

# **OBJECTIVES:**

**Familiarize the following:**

- ✓ **IP Application Requirements**
- ✓ **IP Application Process**
- ✓ **Timeline of an IP Application**
- ✓ **IP Application fees**

# Who may apply for an IP ?

- Natural person
- Juridical person
  - a body of persons, a corporation, a partnership, or other legal entity recognized by law.

# **How to File IP Applications:**

1. in person at the IPOPHIL Head Office
2. in person to the nearest IP Satellite Office
- 3. e-Filing (online Filing)**

# How to File thru Efile? Go to: [www.ipophil.gov.ph](http://www.ipophil.gov.ph)

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- eUMfile (Utility Model)
- eIDfile (Industrial Design)
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Following the amendment of last 14 February 2023,

VICE ADVISORY

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of Trademarks has ceased releasing hard copies of documents, office actions, registration, and Certificates of Renewal Registration.

\*As of 12:00 NN, 14 August 2023

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## PATENT

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## UTILITY MODEL

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# Requirements for Filing a Patent/UM Application

1. IPOPHL Request Form (*downloadable in IPOPHL website*)
2. Specifications (Abstract, Description, Claims, Drawings)
3. Filing Fee

*\*\* Patent Search Report (for purpose of prior art searching)*

**FIRST TO FILE RULE**



Intellectual Property Office of the Philippines  
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## PATENT APPLICATION REQUEST

☐ Direct ☐ PCT ☐ Divisional ☐ w/ Claim of Priority

|                  |  |
|------------------|--|
| Application No.  |  |
| Date Received    |  |
| Date Mailed      |  |
| IPSO / ITSO Code |  |

|                                                                                                                                                                                                                                              |                                  |                                                                                                                     |                                                                |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------|---------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------|
| <b>TITLE OF INVENTION</b>                                                                                                                                                                                                                    |                                  |                                                                                                                     |                                                                |
| <b>DIVISIONAL INFORMATION</b> (For Divisional Applications, if applicable)                                                                                                                                                                   |                                  |                                                                                                                     |                                                                |
| Parent Application No.                                                                                                                                                                                                                       |                                  | Parent Application Filing Date (yyyy/mm/dd)                                                                         |                                                                |
| <b>PCT INFORMATION</b> (For National Phase Entry Applications, if applicable)                                                                                                                                                                |                                  |                                                                                                                     |                                                                |
| International Application Number                                                                                                                                                                                                             |                                  | International Filing Date (yyyy/mm/dd)                                                                              |                                                                |
| International Publication Number                                                                                                                                                                                                             |                                  | International Publication Date (yyyy/mm/dd)                                                                         |                                                                |
| <b>PRIORITY CLAIM/S</b> (If applicable)                                                                                                                                                                                                      |                                  |                                                                                                                     |                                                                |
| Prior Foreign Application Number/s                                                                                                                                                                                                           | Foreign Filing Date (yyyy/mm/dd) | Country                                                                                                             | Certified Copy attached?                                       |
|                                                                                                                                                                                                                                              |                                  |                                                                                                                     | <input type="radio"/> Yes <input type="radio"/> No             |
|                                                                                                                                                                                                                                              |                                  |                                                                                                                     | <input type="radio"/> Yes <input type="radio"/> No             |
|                                                                                                                                                                                                                                              |                                  |                                                                                                                     | <input type="radio"/> Yes <input type="radio"/> No             |
| To add more priority claim/s, please use, IPOPHL Form 120 – Supplemental Priority Form                                                                                                                                                       |                                  |                                                                                                                     |                                                                |
| <b>APPLICANT INFORMATION</b> (For Individual applicants, you may skip Name of Company/Government/School and Position fields)                                                                                                                 |                                  |                                                                                                                     |                                                                |
| Type of Applicant <input type="radio"/> Individual <input type="radio"/> Company / Corporation <input type="radio"/> School <input type="radio"/> Government                                                                                 |                                  |                                                                                                                     |                                                                |
| Name of Company / Corporation / Government Agency / School                                                                                                                                                                                   |                                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets P100M or less) |                                                                |
| Position                                                                                                                                                                                                                                     |                                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                      |                                                                |
| Last Name                                                                                                                                                                                                                                    | First Name                       | Middle Name                                                                                                         | The Applicant is<br><input type="checkbox"/> also the Inventor |
| Address (Complete street info, village, subdivision, barangay)                                                                                                                                                                               |                                  |                                                                                                                     |                                                                |
| Town / City                                                                                                                                                                                                                                  | Province / State                 | Zip Code                                                                                                            | Country of Residence                                           |
| Contact No.                                                                                                                                                                                                                                  | Email Address                    | Nationality                                                                                                         |                                                                |
| * At least one Applicant is mandatory   The applicant with no agent or authorized representative must inform the office of any changes in the contact information   To add more applicants, please use, IPOPHL Form 110 – Supplemental Sheet |                                  |                                                                                                                     |                                                                |
| <b>INVENTOR INFORMATION</b> (If the inventor is not the same as the applicant)                                                                                                                                                               |                                  |                                                                                                                     |                                                                |
| Last Name                                                                                                                                                                                                                                    | First Name                       | Middle Name                                                                                                         | Sex<br><input type="radio"/> Male <input type="radio"/> Female |
| Address (Complete street info, village, subdivision, barangay)                                                                                                                                                                               |                                  |                                                                                                                     |                                                                |
| Town / City                                                                                                                                                                                                                                  | Province / State                 | Zip Code                                                                                                            | Country of Residence                                           |
| Contact No.                                                                                                                                                                                                                                  | Email Address                    | Nationality                                                                                                         |                                                                |
| * At least one Inventor is mandatory   To add more inventors, please use, IPOPHL Form 110 – Supplemental Sheet                                                                                                                               |                                  |                                                                                                                     |                                                                |
| <b>RESIDENT AGENT / AUTHORIZED REPRESENTATIVE</b> (If supplied, all correspondences will be sent to this contact)                                                                                                                            |                                  |                                                                                                                     |                                                                |
| Agent Number (If available)                                                                                                                                                                                                                  |                                  | Company Name (The law firm, if applicable)                                                                          |                                                                |
| Position                                                                                                                                                                                                                                     |                                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                      |                                                                |
| Last Name                                                                                                                                                                                                                                    | First Name                       | Middle Name                                                                                                         |                                                                |
| Address (Complete street info, village, subdivision, barangay)                                                                                                                                                                               |                                  |                                                                                                                     |                                                                |
| Town / City                                                                                                                                                                                                                                  | Province / State                 | Zip Code                                                                                                            | Country of Residence                                           |
| Contact No.                                                                                                                                                                                                                                  | Email Address                    | Nationality                                                                                                         |                                                                |
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## UTILITY MODEL REGISTRATION REQUEST

☐ Direct ☐ PCT ☐ Divisional ☐ w/ Claim of Priority

|                  |  |
|------------------|--|
| Application No.  |  |
| Date Received    |  |
| Date Mailed      |  |
| IPSO / ITSO Code |  |

|                                                                                                                                                                                                                                              |                                  |                                                                                                                     |                                                                |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------|---------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------|
| <b>TITLE OF UTILITY MODEL</b>                                                                                                                                                                                                                |                                  |                                                                                                                     |                                                                |
| <b>DIVISIONAL INFORMATION</b> (For Divisional Applications, if applicable)                                                                                                                                                                   |                                  |                                                                                                                     |                                                                |
| Parent Application No.                                                                                                                                                                                                                       |                                  | Parent Application Filing Date (yyyy/mm/dd)                                                                         |                                                                |
| <b>PCT INFORMATION</b> (For National Phase Entry Applications, if applicable)                                                                                                                                                                |                                  |                                                                                                                     |                                                                |
| International Application Number                                                                                                                                                                                                             |                                  | International Filing Date (yyyy/mm/dd)                                                                              |                                                                |
| International Publication Number                                                                                                                                                                                                             |                                  | International Publication Date (yyyy/mm/dd)                                                                         |                                                                |
| <b>PRIORITY CLAIM/S</b> (If applicable)                                                                                                                                                                                                      |                                  |                                                                                                                     |                                                                |
| Prior Foreign Application Number/s                                                                                                                                                                                                           | Foreign Filing Date (yyyy/mm/dd) | Country                                                                                                             | Certified Copy attached?                                       |
|                                                                                                                                                                                                                                              |                                  |                                                                                                                     | <input type="radio"/> Yes <input type="radio"/> No             |
|                                                                                                                                                                                                                                              |                                  |                                                                                                                     | <input type="radio"/> Yes <input type="radio"/> No             |
|                                                                                                                                                                                                                                              |                                  |                                                                                                                     | <input type="radio"/> Yes <input type="radio"/> No             |
| To add more priority claim/s, please use, IPOPHL Form 120 – Supplemental Priority Form                                                                                                                                                       |                                  |                                                                                                                     |                                                                |
| <b>APPLICANT INFORMATION</b> (For Individual applicants, you may skip Name of Company/Government/School and Position fields)                                                                                                                 |                                  |                                                                                                                     |                                                                |
| Type of Applicant <input type="radio"/> Individual <input type="radio"/> Company / Corporation <input type="radio"/> School <input type="radio"/> Government                                                                                 |                                  |                                                                                                                     |                                                                |
| Name of Company / Corporation / Government Agency / School                                                                                                                                                                                   |                                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets P100M or less) |                                                                |
| Position                                                                                                                                                                                                                                     |                                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                      |                                                                |
| Last Name                                                                                                                                                                                                                                    | First Name                       | Middle Name                                                                                                         | The Applicant is<br><input type="checkbox"/> also the Maker    |
| Address (Complete street info, village, subdivision, barangay)                                                                                                                                                                               |                                  |                                                                                                                     |                                                                |
| Town / City                                                                                                                                                                                                                                  | Province / State                 | Zip Code                                                                                                            | Country of Residence                                           |
| Contact No.                                                                                                                                                                                                                                  | Email Address                    | Nationality                                                                                                         |                                                                |
| * At least one Applicant is mandatory   The applicant with no agent or authorized representative must inform the office of any changes in the contact information   To add more applicants, please use, IPOPHL Form 110 – Supplemental Sheet |                                  |                                                                                                                     |                                                                |
| <b>MAKER INFORMATION</b> (If the maker is not the same as the applicant)                                                                                                                                                                     |                                  |                                                                                                                     |                                                                |
| Last Name                                                                                                                                                                                                                                    | First Name                       | Middle Name                                                                                                         | Sex<br><input type="radio"/> Male <input type="radio"/> Female |
| Address (Complete street info, village, subdivision, barangay)                                                                                                                                                                               |                                  |                                                                                                                     |                                                                |
| Town / City                                                                                                                                                                                                                                  | Province / State                 | Zip Code                                                                                                            | Country of Residence                                           |
| Contact No.                                                                                                                                                                                                                                  | Email Address                    | Nationality                                                                                                         |                                                                |
| * At least one Maker is mandatory   To add more makers, please use, IPOPHL Form 110 – Supplemental Sheet                                                                                                                                     |                                  |                                                                                                                     |                                                                |
| <b>RESIDENT AGENT / AUTHORIZED REPRESENTATIVE</b> (If supplied, all correspondences will be sent to this contact)                                                                                                                            |                                  |                                                                                                                     |                                                                |
| Agent Number (If available)                                                                                                                                                                                                                  |                                  | Company Name (The law firm, if applicable)                                                                          |                                                                |
| Position                                                                                                                                                                                                                                     |                                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                      |                                                                |
| Last Name                                                                                                                                                                                                                                    | First Name                       | Middle Name                                                                                                         |                                                                |
| Address (Complete street info, village, subdivision, barangay)                                                                                                                                                                               |                                  |                                                                                                                     |                                                                |
| Town / City                                                                                                                                                                                                                                  | Province / State                 | Zip Code                                                                                                            | Country of Residence                                           |
| Contact No.                                                                                                                                                                                                                                  | Email Address                    | Nationality                                                                                                         |                                                                |
| Agent or authorized representative must inform the office of any changes in the contact information                                                                                                                                          |                                  |                                                                                                                     |                                                                |



**CHECKLIST (To be filled up by Applicant)**

| This application contains the number of sheets: |                 | This application as filed is accompanied by the items checked below:                  |  |
|-------------------------------------------------|-----------------|---------------------------------------------------------------------------------------|--|
| 1. Request                                      | _____ sheets    | <input type="checkbox"/> Separate notarized power of attorney                         |  |
| 2. Description                                  | _____ sheets    | <input type="checkbox"/> Copy of general power of attorney                            |  |
| 3. Claims                                       | _____ sheets    | <input type="checkbox"/> Priority document/s (see Priority Claim)                     |  |
| 4. Abstract                                     | _____ sheets    | <input type="checkbox"/> Deed of assignment                                           |  |
| 5. Drawing/s                                    | _____ sheets    | <input type="checkbox"/> Cheques for the payment of fees                              |  |
| 6. Sequence Listings:                           |                 | <input type="checkbox"/> Physical data carrier containing Sequence Listing in PDF OCR |  |
| <input type="checkbox"/> Print-out              | _____ sheets    | <input type="checkbox"/> Statement of compliance to requirements of Free and Prior    |  |
| <input type="checkbox"/> Electronic copy (PDF)  | _____ sheets    | Informed Consent of Indigenous Cultural Community                                     |  |
| <b>TOTAL</b>                                    | <b>0</b> sheets | <b>For PCT Applications</b>                                                           |  |
|                                                 |                 | <input type="checkbox"/> Amendments                                                   |  |
|                                                 |                 | <input type="checkbox"/> Under PCT Article 19                                         |  |
|                                                 |                 | <input type="checkbox"/> Under PCT Article 34                                         |  |
|                                                 |                 | <input type="checkbox"/> International Search Report                                  |  |
|                                                 |                 | <input type="checkbox"/> International Preliminary Examination                        |  |
|                                                 |                 | <input type="checkbox"/> POA / ARA                                                    |  |
|                                                 |                 | <input type="checkbox"/> PCT/IB/304, if applicable                                    |  |
|                                                 |                 | <b>For Divisional Applications</b>                                                    |  |
|                                                 |                 | <input type="checkbox"/> Certified true copy of the parent application, if applicable |  |
|                                                 |                 | <input type="checkbox"/> Other document/s (please specify) :                          |  |

Figure number \_\_\_\_\_ of the drawing (if any) is suggested to accompany the abstract for publication.

Total Number of Claims : \_\_\_\_\_

If the Application for Patent is granted, Certificate of Registration to be:

☐ Pickup at IPOP HL ☐ Mail to Applicant ☐ Mail to Agent / Authorized Representative

Mailings may be subject to additional mailing fees.

**ADDITIONAL INFORMATION (Mandatory)**

- The subject matter of the application consists of, or relates to, biological materials and/or genetic resources. (RA 10055; EO 247) ☐ Yes ☐ No  
If yes, please specify the nature and source of origin of the biological materials and/or genetic resources.
- The subject matter of the application consists of, or relates to, traditional knowledge. (RA 10055) ☐ Yes ☐ No  
If yes, please specify the nature and source of origin of the traditional knowledge.
- The subject matter of the application consists of, or relates to, Indigenous Knowledge Systems and Practices. (RA 10055; IPOP HL-NCIP J.A.O. No. 1, 2016) ☐ Yes ☐ No  
If yes, please specify the nature and source of origin of the indigenous knowledge systems and practices.

**IPOP HL PRIVACY STATEMENT AS PER RA 10173 ALSO KNOWN AS "DATA PRIVACY ACT OF 2012" AND SIGNATURE**

☐ Agree ☐ Disagree

By ticking the AGREE box and affixing my signature to the right, I understand that I am giving consent to the collection, storage, sharing and other necessary processing of the personal information contained in this application, freely and voluntarily, to the Intellectual Property Office of the Philippines (IPOP HL) and its partners, in the exercise of its mandate as the lead government agency for the protection of IP rights and in compliance with the provisions of RA 10173, also known as, the Data Privacy Act of 2012.

I declare that all the information provided above are true and correct to the best of my knowledge.

\_\_\_\_\_  
SIGNATURE OVER PRINTED NAME

NOTE: Submission of this Application Form and Payment of the Filing Fees do not mean that the application process is already complete. The application review process involves several stages and IPOP HL may request additional supporting documents, as needed, during said stages. This application is subject to the periods prior to the publication prescribed, if any, in the IP Code and international treaties to which the Philippines is a signatory. An application shall be deemed completed only upon completion of all stages and requirements, and payment of all required fees.

The address stated in these forms shall be used for sending notices and orders in cases filed with BLA.

**CHECKLIST (To be filled up by Applicant)**

| This application contains the number of sheets: |                 | This application as filed is accompanied by the items checked below:                  |  |
|-------------------------------------------------|-----------------|---------------------------------------------------------------------------------------|--|
| 1. Request                                      | _____ sheets    | <input type="checkbox"/> Separate notarized power of attorney                         |  |
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| <input type="checkbox"/> Print-out              | _____ sheets    | <input type="checkbox"/> Statement of compliance to requirements of Free and Prior    |  |
| <input type="checkbox"/> Electronic copy (PDF)  | _____ sheets    | Informed Consent of Indigenous Cultural Community                                     |  |
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|                                                 |                 | <input type="checkbox"/> Amendments                                                   |  |
|                                                 |                 | <input type="checkbox"/> Under PCT Article 19                                         |  |
|                                                 |                 | <input type="checkbox"/> Under PCT Article 34                                         |  |
|                                                 |                 | <input type="checkbox"/> International Search Report                                  |  |
|                                                 |                 | <input type="checkbox"/> International Preliminary Examination                        |  |
|                                                 |                 | <input type="checkbox"/> POA / ARA                                                    |  |
|                                                 |                 | <input type="checkbox"/> PCT/IB/304, if applicable                                    |  |
|                                                 |                 | <b>For Divisional Applications</b>                                                    |  |
|                                                 |                 | <input type="checkbox"/> Certified true copy of the parent application, if applicable |  |
|                                                 |                 | <input type="checkbox"/> Other document/s (please specify) :                          |  |

Figure number \_\_\_\_\_ of the drawing (if any) is suggested to accompany the abstract for publication.

Total Number of Claims : \_\_\_\_\_

If the Application for Utility Model is granted, Certificate of Registration to be:

☐ Pickup at IPOP HL ☐ Mail to Applicant ☐ Mail to Agent / Authorized Representative

Mailings may be subject to additional mailing fees.

**ADDITIONAL INFORMATION (Mandatory)**

- The subject matter of the application consists of, or relates to, biological materials and/or genetic resources. (RA 10055; EO 247) ☐ Yes ☐ No  
If yes, please specify the nature and source of origin of the biological materials and/or genetic resources.
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If yes, please specify the nature and source of origin of the traditional knowledge.
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**IPOP HL PRIVACY STATEMENT AS PER RA 10173 ALSO KNOWN AS "DATA PRIVACY ACT OF 2012" AND SIGNATURE**

☐ Agree ☐ Disagree

By ticking the AGREE box and affixing my signature to the right, I understand that I am giving consent to the collection, storage, sharing and other necessary processing of the personal information contained in this application, freely and voluntarily, to the Intellectual Property Office of the Philippines (IPOP HL) and its partners, in the exercise of its mandate as the lead government agency for the protection of IP rights and in compliance with the provisions of RA 10173, also known as, the Data Privacy Act of 2012.

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## SUPPLEMENTAL SHEET

| SEQ. # [ ] PERSONAL INFO / ORGANIZATION INFO                                                                                                                |                  |                                                                                                                   |                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------------------------------------------------------------------------------------------------------|----------------------|
| Type <input type="radio"/> Individual <input type="radio"/> Company/Corp. <input type="radio"/> School <input type="radio"/> Government                     |                  |                                                                                                                   |                      |
| Role <input type="radio"/> Applicant <input type="radio"/> Inventor <input type="radio"/> Maker <input type="radio"/> Designer <input type="radio"/> Author |                  |                                                                                                                   |                      |
| Name of Company / Corporation / Government Agency / School                                                                                                  |                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets below P100M) |                      |
| Position                                                                                                                                                    |                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                    |                      |
| Last Name                                                                                                                                                   | First Name       | Middle Name                                                                                                       |                      |
| Address (Complete street info, village, subdivision, barangay)                                                                                              |                  |                                                                                                                   |                      |
| Town / City                                                                                                                                                 | Province / State | Zip Code                                                                                                          | Country of Residence |
| Contact No.                                                                                                                                                 | Email Address    | Nationality                                                                                                       |                      |

| SEQ. # [ ] PERSONAL INFO / ORGANIZATION INFO                                                                                                                |                  |                                                                                                                   |                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------------------------------------------------------------------------------------------------------|----------------------|
| Type <input type="radio"/> Individual <input type="radio"/> Company/Corp. <input type="radio"/> School <input type="radio"/> Government                     |                  |                                                                                                                   |                      |
| Role <input type="radio"/> Applicant <input type="radio"/> Inventor <input type="radio"/> Maker <input type="radio"/> Designer <input type="radio"/> Author |                  |                                                                                                                   |                      |
| Name of Company / Corporation / Government Agency / School                                                                                                  |                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets below P100M) |                      |
| Position                                                                                                                                                    |                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                    |                      |
| Last Name                                                                                                                                                   | First Name       | Middle Name                                                                                                       |                      |
| Address (Complete street info, village, subdivision, barangay)                                                                                              |                  |                                                                                                                   |                      |
| Town / City                                                                                                                                                 | Province / State | Zip Code                                                                                                          | Country of Residence |
| Contact No.                                                                                                                                                 | Email Address    | Nationality                                                                                                       |                      |

| SEQ. # [ ] PERSONAL INFO / ORGANIZATION INFO                                                                                                                |                  |                                                                                                                   |                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------------------------------------------------------------------------------------------------------|----------------------|
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| Role <input type="radio"/> Applicant <input type="radio"/> Inventor <input type="radio"/> Maker <input type="radio"/> Designer <input type="radio"/> Author |                  |                                                                                                                   |                      |
| Name of Company / Corporation / Government Agency / School                                                                                                  |                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets below P100M) |                      |
| Position                                                                                                                                                    |                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                    |                      |
| Last Name                                                                                                                                                   | First Name       | Middle Name                                                                                                       |                      |
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| Town / City                                                                                                                                                 | Province / State | Zip Code                                                                                                          | Country of Residence |
| Contact No.                                                                                                                                                 | Email Address    | Nationality                                                                                                       |                      |

| SEQ. # [ ] PERSONAL INFO / ORGANIZATION INFO                                                                                                                |                  |                                                                                                                   |                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------------------------------------------------------------------------------------------------------|----------------------|
| Type <input type="radio"/> Individual <input type="radio"/> Company/Corp. <input type="radio"/> School <input type="radio"/> Government                     |                  |                                                                                                                   |                      |
| Role <input type="radio"/> Applicant <input type="radio"/> Inventor <input type="radio"/> Maker <input type="radio"/> Designer <input type="radio"/> Author |                  |                                                                                                                   |                      |
| Name of Company / Corporation / Government Agency / School                                                                                                  |                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets below P100M) |                      |
| Position                                                                                                                                                    |                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                    |                      |
| Last Name                                                                                                                                                   | First Name       | Middle Name                                                                                                       |                      |
| Address (Complete street info, village, subdivision, barangay)                                                                                              |                  |                                                                                                                   |                      |
| Town / City                                                                                                                                                 | Province / State | Zip Code                                                                                                          | Country of Residence |
| Contact No.                                                                                                                                                 | Email Address    | Nationality                                                                                                       |                      |

| SEQ. # [ ] PERSONAL INFO / ORGANIZATION INFO                                                                                                                |                  |                                                                                                                   |                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------------------------------------------------------------------------------------------------------|----------------------|
| Type <input type="radio"/> Individual <input type="radio"/> Company/Corp. <input type="radio"/> School <input type="radio"/> Government                     |                  |                                                                                                                   |                      |
| Role <input type="radio"/> Applicant <input type="radio"/> Inventor <input type="radio"/> Maker <input type="radio"/> Designer <input type="radio"/> Author |                  |                                                                                                                   |                      |
| Name of Company / Corporation / Government Agency / School                                                                                                  |                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets below P100M) |                      |
| Position                                                                                                                                                    |                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                    |                      |
| Last Name                                                                                                                                                   | First Name       | Middle Name                                                                                                       |                      |
| Address (Complete street info, village, subdivision, barangay)                                                                                              |                  |                                                                                                                   |                      |
| Town / City                                                                                                                                                 | Province / State | Zip Code                                                                                                          | Country of Residence |
| Contact No.                                                                                                                                                 | Email Address    | Nationality                                                                                                       |                      |

| SEQ. # [ ] PERSONAL INFO / ORGANIZATION INFO                                                                                                                |                  |                                                                                                                   |                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------------------------------------------------------------------------------------------------------|----------------------|
| Type <input type="radio"/> Individual <input type="radio"/> Company/Corp. <input type="radio"/> School <input type="radio"/> Government                     |                  |                                                                                                                   |                      |
| Role <input type="radio"/> Applicant <input type="radio"/> Inventor <input type="radio"/> Maker <input type="radio"/> Designer <input type="radio"/> Author |                  |                                                                                                                   |                      |
| Name of Company / Corporation / Government Agency / School                                                                                                  |                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets below P100M) |                      |
| Position                                                                                                                                                    |                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                    |                      |
| Last Name                                                                                                                                                   | First Name       | Middle Name                                                                                                       |                      |
| Address (Complete street info, village, subdivision, barangay)                                                                                              |                  |                                                                                                                   |                      |
| Town / City                                                                                                                                                 | Province / State | Zip Code                                                                                                          | Country of Residence |
| Contact No.                                                                                                                                                 | Email Address    | Nationality                                                                                                       |                      |

| SEQ. # [ ] PERSONAL INFO / ORGANIZATION INFO                                                                                                                |                  |                                                                                                                   |                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------------------------------------------------------------------------------------------------------|----------------------|
| Type <input type="radio"/> Individual <input type="radio"/> Company/Corp. <input type="radio"/> School <input type="radio"/> Government                     |                  |                                                                                                                   |                      |
| Role <input type="radio"/> Applicant <input type="radio"/> Inventor <input type="radio"/> Maker <input type="radio"/> Designer <input type="radio"/> Author |                  |                                                                                                                   |                      |
| Name of Company / Corporation / Government Agency / School                                                                                                  |                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets below P100M) |                      |
| Position                                                                                                                                                    |                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                    |                      |
| Last Name                                                                                                                                                   | First Name       | Middle Name                                                                                                       |                      |
| Address (Complete street info, village, subdivision, barangay)                                                                                              |                  |                                                                                                                   |                      |
| Town / City                                                                                                                                                 | Province / State | Zip Code                                                                                                          | Country of Residence |
| Contact No.                                                                                                                                                 | Email Address    | Nationality                                                                                                       |                      |

| SEQ. # [ ] PERSONAL INFO / ORGANIZATION INFO                                                                                                                |                  |                                                                                                                   |                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------------------------------------------------------------------------------------------------------|----------------------|
| Type <input type="radio"/> Individual <input type="radio"/> Company/Corp. <input type="radio"/> School <input type="radio"/> Government                     |                  |                                                                                                                   |                      |
| Role <input type="radio"/> Applicant <input type="radio"/> Inventor <input type="radio"/> Maker <input type="radio"/> Designer <input type="radio"/> Author |                  |                                                                                                                   |                      |
| Name of Company / Corporation / Government Agency / School                                                                                                  |                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets below P100M) |                      |
| Position                                                                                                                                                    |                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                    |                      |
| Last Name                                                                                                                                                   | First Name       | Middle Name                                                                                                       |                      |
| Address (Complete street info, village, subdivision, barangay)                                                                                              |                  |                                                                                                                   |                      |
| Town / City                                                                                                                                                 | Province / State | Zip Code                                                                                                          | Country of Residence |
| Contact No.                                                                                                                                                 | Email Address    | Nationality                                                                                                       |                      |

| SEQ. # [ ] PERSONAL INFO / ORGANIZATION INFO                                                                                                                |                  |                                                                                                                   |                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------------------------------------------------------------------------------------------------------|----------------------|
| Type <input type="radio"/> Individual <input type="radio"/> Company/Corp. <input type="radio"/> School <input type="radio"/> Government                     |                  |                                                                                                                   |                      |
| Role <input type="radio"/> Applicant <input type="radio"/> Inventor <input type="radio"/> Maker <input type="radio"/> Designer <input type="radio"/> Author |                  |                                                                                                                   |                      |
| Name of Company / Corporation / Government Agency / School                                                                                                  |                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets below P100M) |                      |
| Position                                                                                                                                                    |                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                    |                      |
| Last Name                                                                                                                                                   | First Name       | Middle Name                                                                                                       |                      |
| Address (Complete street info, village, subdivision, barangay)                                                                                              |                  |                                                                                                                   |                      |
| Town / City                                                                                                                                                 | Province / State | Zip Code                                                                                                          | Country of Residence |
| Contact No.                                                                                                                                                 | Email Address    | Nationality                                                                                                       |                      |

| SEQ. # [ ] PERSONAL INFO / ORGANIZATION INFO                                                                                                                |                  |                                                                                                                   |                      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|-------------------------------------------------------------------------------------------------------------------|----------------------|
| Type <input type="radio"/> Individual <input type="radio"/> Company/Corp. <input type="radio"/> School <input type="radio"/> Government                     |                  |                                                                                                                   |                      |
| Role <input type="radio"/> Applicant <input type="radio"/> Inventor <input type="radio"/> Maker <input type="radio"/> Designer <input type="radio"/> Author |                  |                                                                                                                   |                      |
| Name of Company / Corporation / Government Agency / School                                                                                                  |                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets below P100M) |                      |
| Position                                                                                                                                                    |                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                    |                      |
| Last Name                                                                                                                                                   | First Name       | Middle Name                                                                                                       |                      |
| Address (Complete street info, village, subdivision, barangay)                                                                                              |                  |                                                                                                                   |                      |
| Town / City                                                                                                                                                 | Province / State | Zip Code                                                                                                          | Country of Residence |
| Contact No.                                                                                                                                                 | Email Address    | Nationality                                                                                                       |                      |



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Patent ▶

Utility Model ▶

Industrial Design ▶

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Technology Transfer ▶

Patent Search and Analytics ▶

IP Enforcement

Downloadable Forms

Schedule of Fees ▶

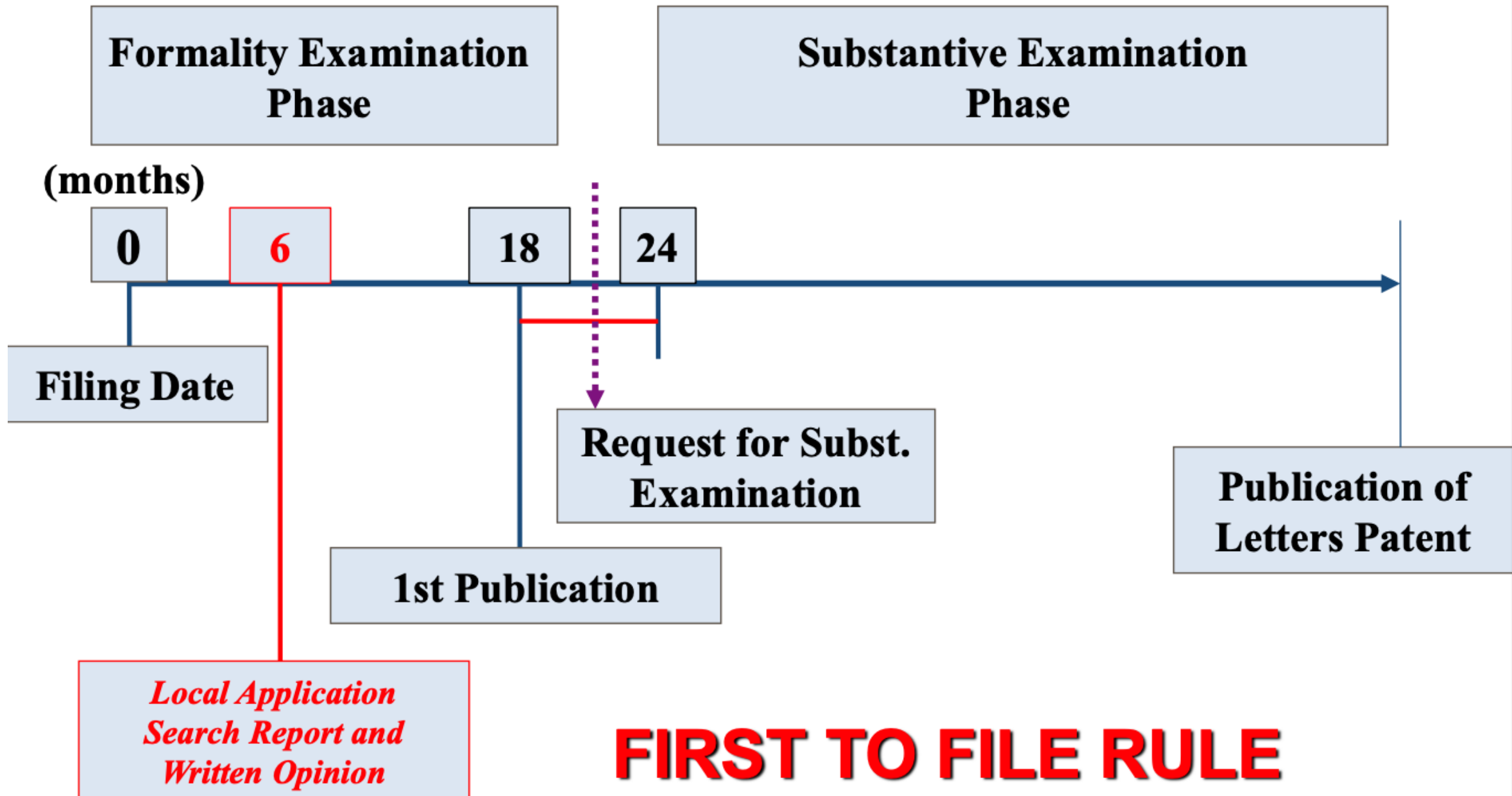
PROPERTY OFFICE



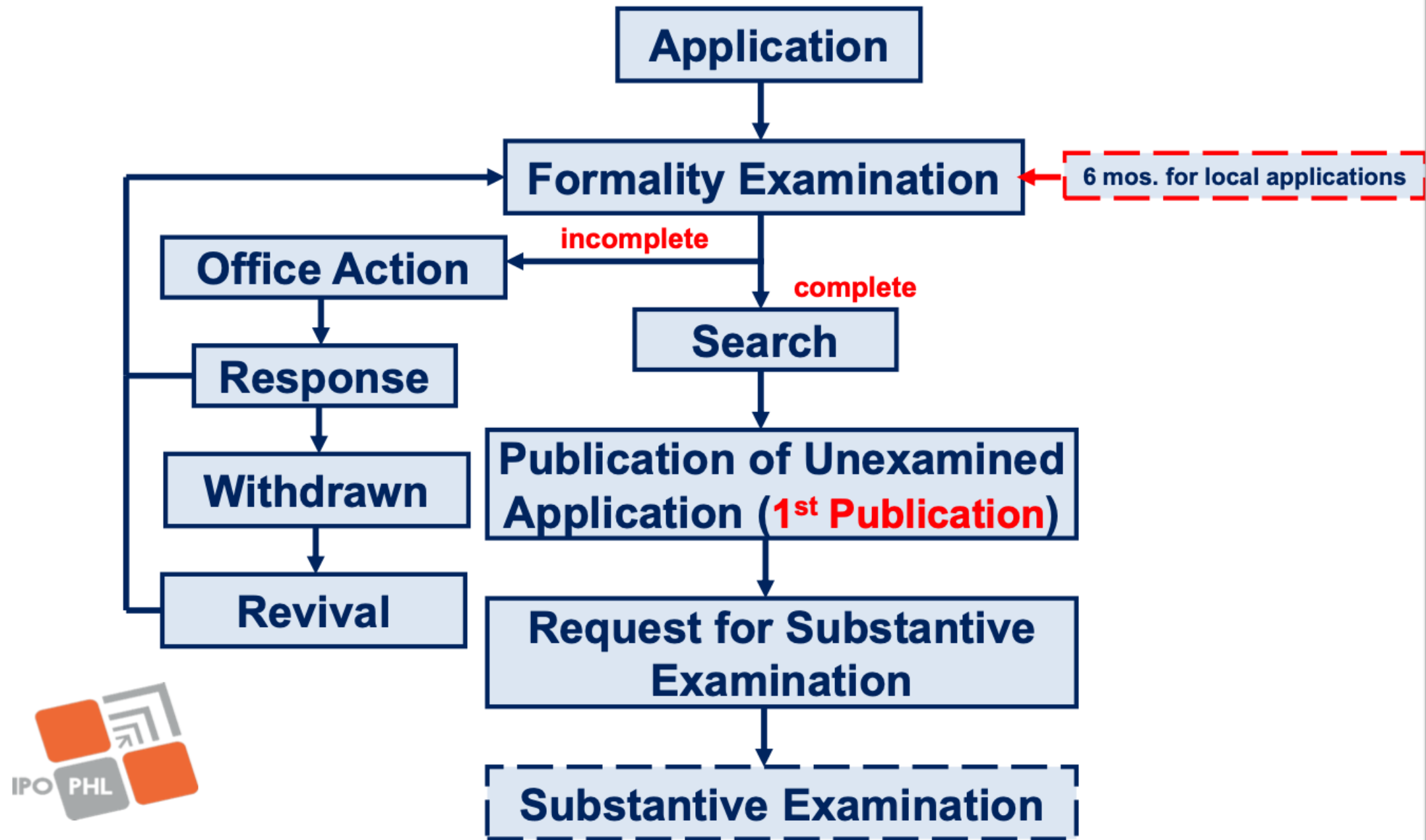
<https://www.ipophil.gov.ph/application-forms/>

Intellectual Property In  
qualified individuals and institutio  
d application fees, technical cor  
n this program.\* Order

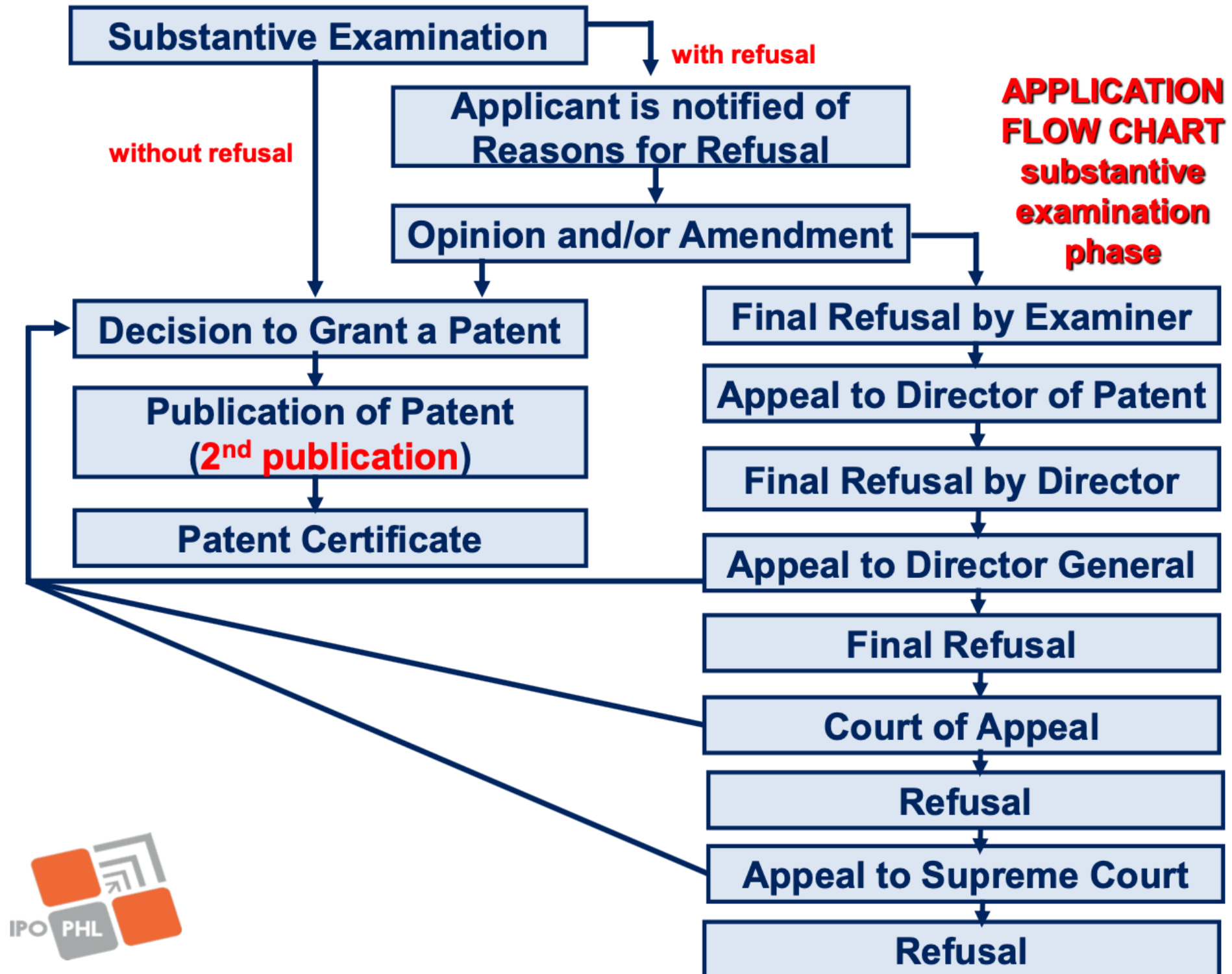
# Examination Process Timeline ( **PATENT** )



# PATENT APPLICATION FLOW CHART (Formality Phase)



# Substantive Examination

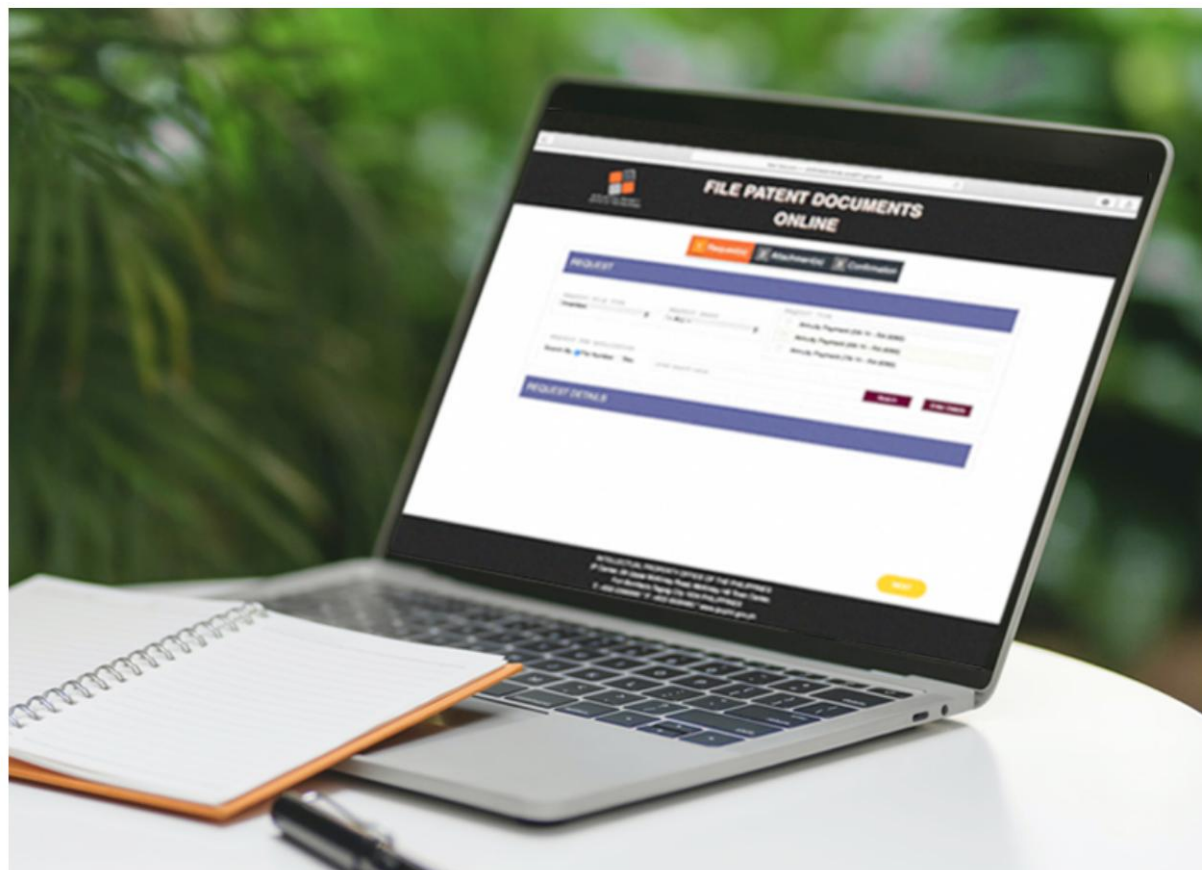


# Online Response: eDocFile

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REPUBLIC OF THE PHILIPPINES

INTELLECTUAL PROPERTY OFFICE  
OF THE PHILIPPINES

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It is now easier to file or submit responses, extensions, requests, basic annuity, and other patent-related documents.

The Intellectual Property of the Philippines is launching the **eDocfile for Patents**, which can be accessed from anywhere, anytime. No registration needed! Simply prepare a valid email address and connect via the internet. Payments can be done online or over-the-counter through selected merchants.

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# Online Response: eDocFile



eDocFile | Patent documents online filing

1 Request(s) 2 Attachment(s) 3 Confirmation

## Request

REQUEST FILE TYPE

Invention

REQUEST GROUP

-- ALL --

REQUEST TYPE

- ☐ Annuity Payment (5th Yr - RA 8293)
- ☐ Annuity Payment (6th Yr - RA 8293)
- ☐ Annuity Payment (7th Yr - RA 8293)

REQUEST FOR APPLICATION

- enter Application No. or Title -



Enter Details

## Request Details

NEXT

INTELLECTUAL PROPERTY OFFICE OF THE PHILIPPINES

IP Center, 28 Upper McKinley Road, McKinley Hill Town Center,  
Fort Bonifacio, Taguig City 1634 PHILIPPINES

T: +632-2386300 \* F: +632-5539480 \* www.ipophil.gov.ph



# **IP Services Fees (For External Clients)**

**Paten Searching – 10,000.00- 15,000.00**

**Patent Drafting- 10,000.00- 15,000.00**

# Filing Fees ( **PATENT** )

| Type of Fee                        | Small Entity | Big Entity   |
|------------------------------------|--------------|--------------|
| Filing Fee (inclusive of 5 claims) | Php 2,000.00 | Php 4,320.00 |
| Excess Claims (per claim)          | Php 180.00   | Php 360.00   |
| First Publication                  | Php 920.00   | Php 960.00   |
| Second Publication                 | Php 920.00   | Php 960.00   |
| Issuance                           | Php 600.00   | Php 1,200.00 |
| plus 1% Legal Research Fund        |              |              |

**Within one (1) month from date of filing**

# **PAYMENT for REQUEST of SUBSTANTIVE EXAMINATION**

| Type of Fee                             | Small Entity | Big Entity    |
|-----------------------------------------|--------------|---------------|
| Substantive Examination                 | Php 2,100.00 | Php 4,200.00  |
| Early Substantive Examination           | Php 2,500.00 | Php 5,000.00  |
| Accelerated Substantive Examination     | Php 500.00   | Php 1,000.00  |
| Accelerated Substantive Examination Fee | Php 6,600.00 | Php 13,320.00 |
| plus 1% legal research fund             |              |               |

# Annual Fees

- First annual fee – due on the expiration of four (4) years from the date of first publication.
- **P1,565.50 Excess Claim: P212.10**
- Payment may be made within 3 months before the due date.

# Annual Fees

- Subsequent annual fees – due on the each anniversary of such date.
- 6th year **P2,020.00 Excess Claim: P212.00**
- 7th year **P2,580.00 Excess Claim: P210.00**
- 8th year **P3,100.00 Excess Claim: P210.00**



# Annual Fees

- An application shall be deemed withdrawn, or a patent be considered lapsed if annual fees are not paid on the due date.
- Grace period of 6 months shall be granted if annual fee is paid with a surcharge of **50% of annual fee.**

# Utility Model Application Process

## Utility Model

### Registration Process Overview

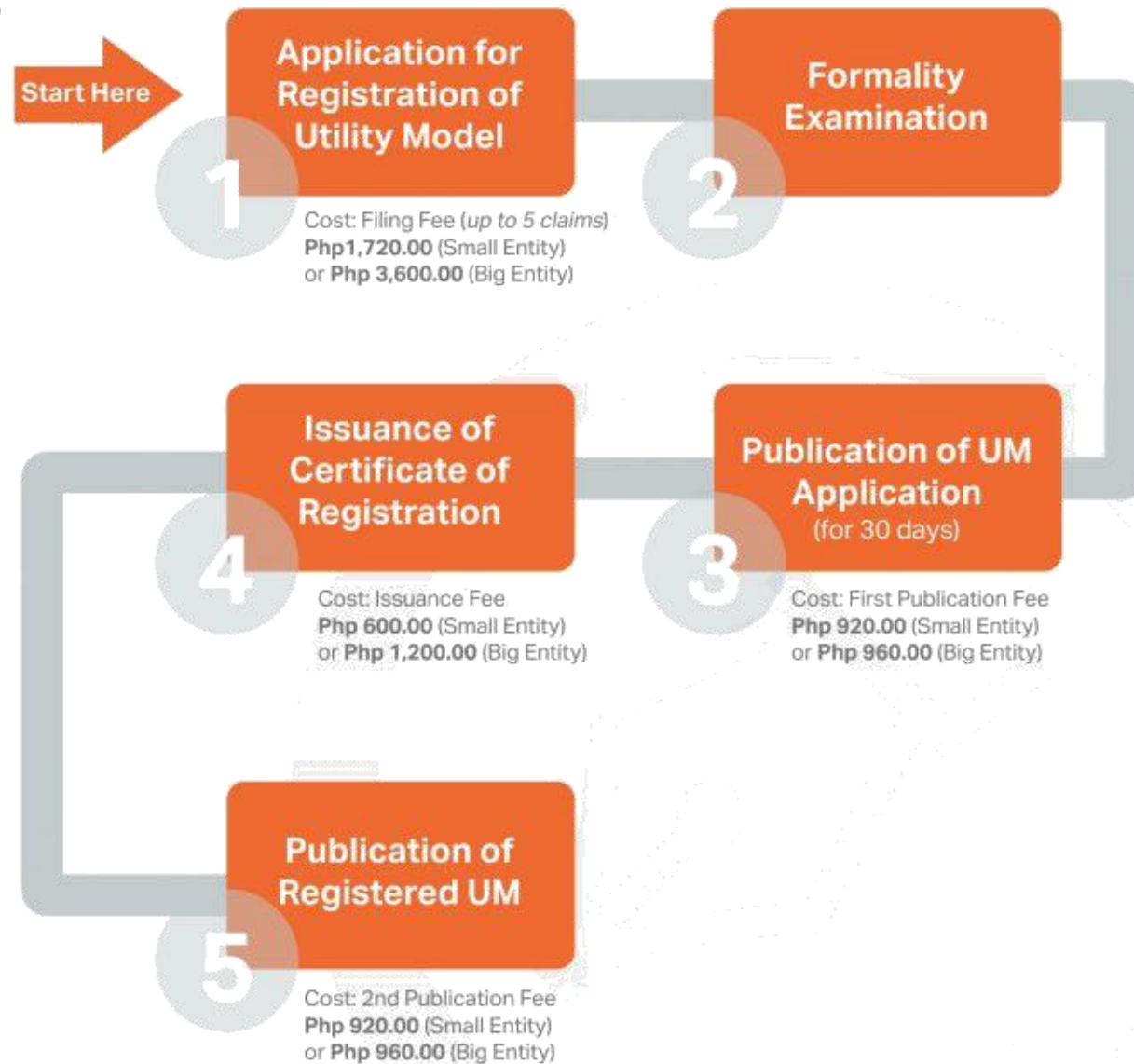
#### WHAT AFFECTS PROCESS DURATION

- Formality defect with and without response
- Failure of the applicant to respond
- With adverse information

With appeals:

- Appeal to the Director General
- Court of Appeals
- Supreme Court

#### Path to Registration



# **MUST KNOW PROVISIONS ( UTILITY MODEL )**

- Provisions for Utility Model requirements:  
Novelty, Industrial Applicability
- **NO** Substantive Examination
- Formality Examination Only
- Registrability Report (Novelty and Industrial Applicability test)

# Filing Fees ( **UTILITY MODEL** )

| Type of Fee                 | Small Entity | Big Entity   |
|-----------------------------|--------------|--------------|
| Filing Fee                  | Php 1,720.00 | Php 3,600.00 |
| First Publication           | Php 920.00   | Php 960.00   |
| Second Publication          | Php 920.00   | Php 960.00   |
| Issuance of Certificate     | Php 600.00   | Php 1,200.00 |
| plus 1% Legal Research Fund |              |              |

**Within one (1) month from date of filing**

# Difference between **Granted Patent** and **Published Patent**?

- *Granted patents* essentially hand the creators and manufacturers of a protected work a monopoly over that work for a set period of time.
- *Published patent* applications for inventions do not give these rights to the creators of works, but simply say that the works might be protected in the future.

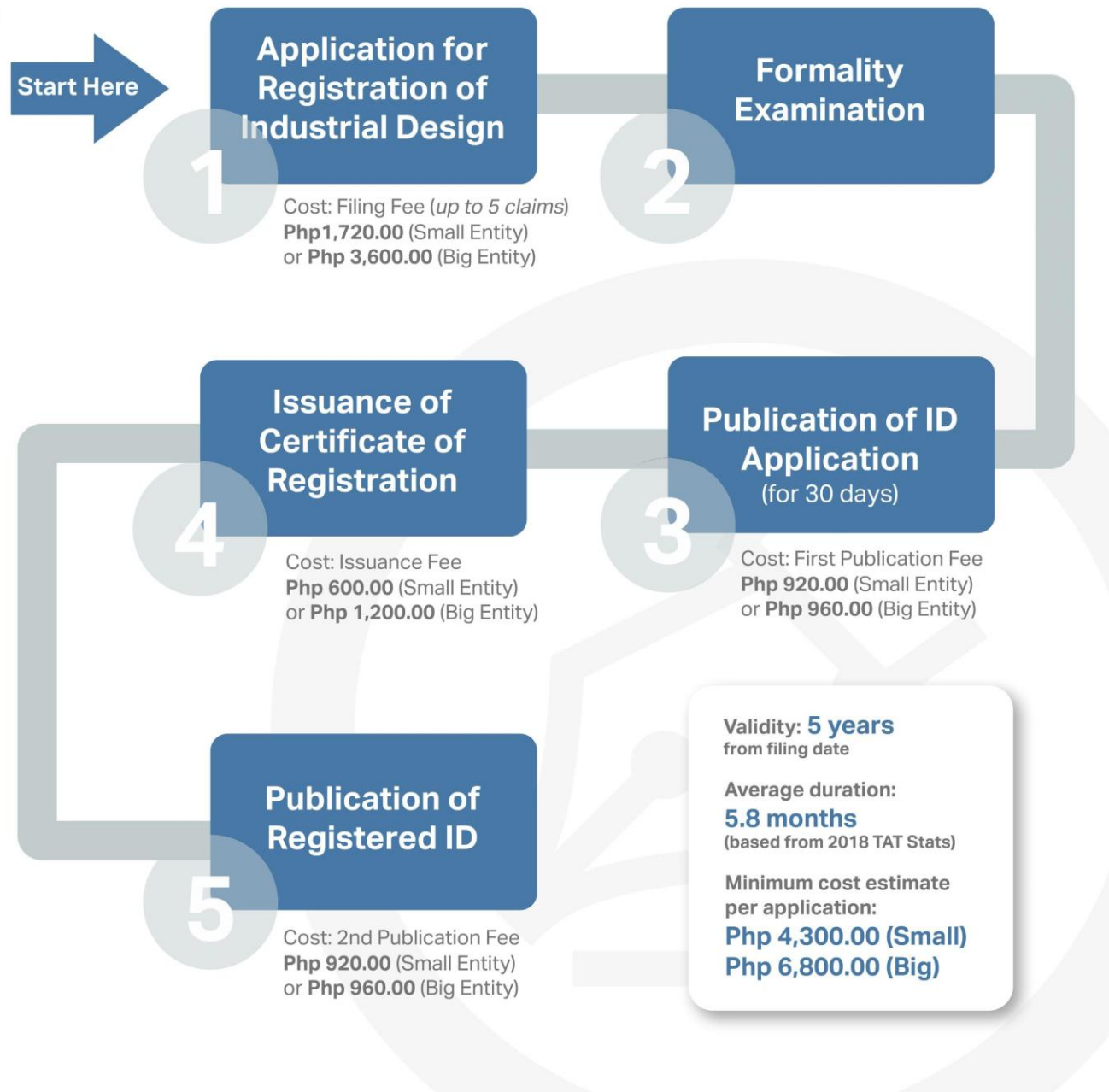
# Industrial Design Application Process

## Industrial Design Registration Process Overview



- Determine your intellectual property (is it an Industrial Design?).
- Search to see if there is anything similar in the market.
- Prepare your drawings or images to show the overall visual features of your design.
- Complete the filing requirements.
- Pay the necessary fees.

### Path to Registration





# Required Documents ( **INDUSTRIAL DESIGN** )

- Form 300 (IPOPHL)
- Novelty Search Report
- ID Specifications
- ID Drawings



Intellectual Property Office of the Philippines  
28 Upper McKinley Rd, Fort Bonifacio, Taguig City 1634 PH  
☎ +63 (2) 7238-6300 | ✉ ask@ipophil.gov.ph

## INDUSTRIAL DESIGN REGISTRATION REQUEST

☐ Direct ☐ Divisional ☐ w/ Claim of Priority ☐ Embodiment/s

For IPOP HL use only

|                  |  |
|------------------|--|
| Application No.  |  |
| Date Received    |  |
| Date Mailed      |  |
| IPSO / ITSO Code |  |

### TITLE OF INDUSTRIAL DESIGN

### DIVISIONAL INFORMATION (For Divisional Applications, if applicable)

Parent Application No.  Parent Application Filing Date (yyyy/mm/dd)

### PRIORITY CLAIM/S (If applicable)

| Prior Foreign Application Number/s | Foreign Filing Date (yyyy/mm/dd) | Country              | Certified Copy attached?                           |
|------------------------------------|----------------------------------|----------------------|----------------------------------------------------|
| <input type="text"/>               | <input type="text"/>             | <input type="text"/> | <input type="radio"/> Yes <input type="radio"/> No |
| <input type="text"/>               | <input type="text"/>             | <input type="text"/> | <input type="radio"/> Yes <input type="radio"/> No |
| <input type="text"/>               | <input type="text"/>             | <input type="text"/> | <input type="radio"/> Yes <input type="radio"/> No |

To add more priority claim/s, please use, IPOP HL Form 120 – Supplemental Priority Form

### APPLICANT INFORMATION (For individual applicants, you may skip Name of Company/Government/School and Position fields)

Type of Applicant ☐ Individual ☐ Company / Corporation ☐ School ☐ Government

Name of Company / Corporation / Government Agency / School  Entity ☐ Big (Total Assets > P100M) ☐ Small (Total Assets P100M or less)

Position  Sex ☐ Male ☐ Female

Last Name  First Name  Middle Name  The Applicant is ☐ also the Designer

Address (Complete street info, village, subdivision, barangay)

Town / City  Province / State  Zip Code  Country of Residence

Contact No.  Email Address (Required)  Nationality

\* At least one Applicant is mandatory. | The applicant with no agent or authorized representative must inform the office of any changes in the contact information. | To add more applicants, please use, IPOP HL Form 110 – Supplemental Sheet

### DESIGNER INFORMATION (If the designer is not the same as the applicant)

Last Name  First Name  Middle Name  Sex ☐ Male ☐ Female

Address (Complete street info, village, subdivision, barangay)

Town / City  Province / State  Zip Code  Country of Residence

Contact No.  Email Address (Required)  Nationality

\* At least one Designer is mandatory. | To add more designer, please use, IPOP HL Form 110 – Supplemental Sheet

### RESIDENT AGENT / AUTHORIZED REPRESENTATIVE (If supplied, all correspondences will be sent to this contact)

Agent Number (If available)  Company Name (The law firm, if applicable)

Position  Sex ☐ Male ☐ Female

Last Name  First Name  Middle Name

Address (Complete street info, village, subdivision, barangay)

Town / City  Province / State  Zip Code  Country of Residence

Contact No.  Email Address (Required)  Nationality

Agent or authorized representative must inform the office of any changes in the contact information

### CHECKLIST (To be filled up by Applicant)

| This application contains the number of sheets: | This application as filed is accompanied by the items checked below:                                                                 |
|-------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------|
| 1. Request <input type="text"/> sheets          | <input type="checkbox"/> Separate notarized power of attorney                                                                        |
| 2. Description <input type="text"/> sheets      | <input type="checkbox"/> Copy of general power of attorney                                                                           |
| 3. Claims <input type="text"/> sheets           | <input type="checkbox"/> Priority document/s (see Priority Claim)                                                                    |
| 4. Drawing/s <input type="text"/> sheets        | <input type="checkbox"/> Deed of assignment                                                                                          |
| TOTAL <input type="text"/> sheets               | <input type="checkbox"/> Cheques for the payment of fees                                                                             |
|                                                 | <input type="checkbox"/> Statement of compliance to requirements of Free and Prior Informed Consent of Indigenous Cultural Community |
|                                                 | <b>For Divisional Applications</b>                                                                                                   |
|                                                 | <input type="checkbox"/> Certified true copy of the parent application, if applicable                                                |
|                                                 | <input type="checkbox"/> Other document/s (please specify) : <input type="text"/>                                                    |

Figure number  of the drawing (if any) is suggested to accompany the abstract for publication.

Total Number of Design Embodiments :

If the Application is granted, choose the delivery method for the Certificate of Registration:

☐ Pickup at IPOP HL ☐ Mail to Applicant ☐ Mail to Agent / Authorized Representative

Mailings may be subject to additional mailing fees.

### ADDITIONAL INFORMATION (Mandatory)

- The subject matter of the application consists of, or relates to, traditional knowledge. (RA 10055) ☐ Yes ☐ No  
If yes, please specify the nature and source of origin of the traditional knowledge.
- The subject matter of the application consists of, or relates to, Indigenous Knowledge Systems and Practices. (RA 10055; IPOP HL-NCIP J.A.O. No. 1, 2016) ☐ Yes ☐ No  
If yes, please specify the nature and source of origin of the indigenous knowledge systems and practices.

### IPOP HL PRIVACY STATEMENT AS PER RA 10173 ALSO KNOWN AS "DATA PRIVACY ACT OF 2012" AND SIGNATURE

☐ Agree ☐ Disagree

By ticking the AGREE box and affixing my signature to the right, I understand that I am giving consent to the collection, storage, sharing and other necessary processing of the personal information contained in this application, freely and voluntarily, to the Intellectual Property Office of the Philippines (IPOP HL) and its partners, in the exercise of its mandate as the lead government agency for the protection of IP rights and in compliance with the provisions of RA 10173, also known as, the Data Privacy Act of 2012.

I declare that all the information provided above are true and correct to the best of my knowledge.

Sign Here

SIGNATURE OVER PRINTED NAME

If the present Request form is signed on behalf of any applicant by an agent, a separate notarized power of attorney appointing the agent and signed by the applicant is required. If in such case it is desired to make use of a general power of attorney (deposited with the Intellectual Property Office), a copy thereof must be attached to this form.

NOTE: Submission of this Application Form and Payment of the Filing Fees do not mean that the application process is already complete. The application review process involves several stages and IPOP HL may request additional supporting documents, as needed, during said stages. This application is subject to the periods prior to the publication prescribed, if any, in the IP Code and international treaties to which the Philippines is a signatory. An application shall be deemed completed only upon completion of all stages and requirements, and payment of all required fees.

The address stated in these forms shall be used for sending notices and orders in cases filed with BLA.

# Filing Fees ( **INDUSTRIAL DESIGN** )

| Type of Fee                 | Small Entity | Big Entity   |
|-----------------------------|--------------|--------------|
| Filing Fee                  | Php 1,720.00 | Php 3,600.00 |
| First Publication           | Php 920.00   | Php 960.00   |
| Second Publication          | Php 920.00   | Php 960.00   |
| Issuance of Certificate     | Php 600.00   | Php 1,200.00 |
| plus 1% Legal Research Fund |              |              |

# Required Documents ( **TRADEMARK** )

- Form 400 (IPOPHL)
- Description/functions and Colors of the mark
- Class of Trade or Services
- J.peg format copy of the mark





For IPOPHL use only

|                  |  |
|------------------|--|
| Application No.  |  |
| Date Received    |  |
| Date Mailed      |  |
| IPSO / ITSO Code |  |

## TRADEMARK APPLICATION

### TRADEMARK INFORMATION

Place a copy of the Mark inside the box. It should be clear enough for the reproduction and digitization.

|                               |                                                                                                                                                                                                      |
|-------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Title of the Mark             |                                                                                                                                                                                                      |
| Claim of Color/s              |                                                                                                                                                                                                      |
| Translation / Transliteration |                                                                                                                                                                                                      |
| Disclaimer                    |                                                                                                                                                                                                      |
| Type                          | <input type="radio"/> Word Mark <input type="radio"/> Figurative Mark <input type="radio"/> Figurative w/ Word Mark<br><input type="radio"/> Three-dimensional <input type="radio"/> Collective Mark |

### CLAIM OF CONVENTION PRIORITY (If applicable)

|                                    |                                  |         |
|------------------------------------|----------------------------------|---------|
| Prior Foreign Application Number/s | Foreign Filing Date (yyyy/mm/dd) | Country |
|                                    |                                  |         |
|                                    |                                  |         |
|                                    |                                  |         |

To add more priority claim/s, please use, IPOPHL Form 120 – Supplemental Priority Form

### APPLICANT INFORMATION (For individual applicants, you may skip Name of Company/Government/School and Position fields)

|                                                                                                                                                              |                  |                                                                                                                     |                      |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------|---------------------------------------------------------------------------------------------------------------------|----------------------|
| Type of Applicant <input type="radio"/> Individual <input type="radio"/> Company / Corporation <input type="radio"/> School <input type="radio"/> Government |                  |                                                                                                                     |                      |
| Name of Company / Corporation / Government Agency / School                                                                                                   |                  | Entity<br><input type="radio"/> Big (Total Assets > P100M) <input type="radio"/> Small (Total Assets P100M or less) |                      |
| Position                                                                                                                                                     |                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female                                                      |                      |
| Last Name                                                                                                                                                    | First Name       | Middle Name                                                                                                         |                      |
|                                                                                                                                                              |                  |                                                                                                                     |                      |
| Address (Complete street info, village, subdivision, barangay)                                                                                               |                  |                                                                                                                     |                      |
|                                                                                                                                                              |                  |                                                                                                                     |                      |
| Town / City                                                                                                                                                  | Province / State | Zip Code                                                                                                            | Country of Residence |
|                                                                                                                                                              |                  |                                                                                                                     |                      |
| Contact No.                                                                                                                                                  | Email Address    | Nationality                                                                                                         |                      |
|                                                                                                                                                              |                  |                                                                                                                     |                      |

\* At least one Applicant is mandatory | The applicant with no agent or authorized representative must inform the office of any changes in the contact information | To add more applicants, please use, IPOPHL Form 110 – Supplemental Sheet

### RESIDENT AGENT / AUTHORIZED REPRESENTATIVE (If supplied, all correspondences will be sent to this contact)

|                                                                |                  |                                                                |                      |
|----------------------------------------------------------------|------------------|----------------------------------------------------------------|----------------------|
| Agent Number (If available)                                    |                  | Company Name (The law firm, if applicable)                     |                      |
|                                                                |                  |                                                                |                      |
| Position                                                       |                  | Sex<br><input type="radio"/> Male <input type="radio"/> Female |                      |
|                                                                |                  |                                                                |                      |
| Last Name                                                      | First Name       | Middle Name                                                    |                      |
|                                                                |                  |                                                                |                      |
| Address (Complete street info, village, subdivision, barangay) |                  |                                                                |                      |
|                                                                |                  |                                                                |                      |
| Town / City                                                    | Province / State | Zip Code                                                       | Country of Residence |
|                                                                |                  |                                                                |                      |
| Contact No.                                                    | Email Address    | Nationality                                                    |                      |
|                                                                |                  |                                                                |                      |

Agent or authorized representative must inform the office of any changes in the contact information

### GOODS AND SERVICES (Pls. refer to the list of Nice Classes on IPOPHL Form 410 – Nice Classes)

|  |
|--|
|  |
|--|

\* At least one good or service is mandatory | Use additional sheet/s if necessary

### IMPORTANT REMINDERS

Pursuant to Section 124.2 and Section 145 of R.A. 8293 and the Trademark Regulations:

1. The applicant or the registrant shall file **DECLARATION OF ACTUAL USE (DAU)** of the mark with evidence to that effect, as prescribed by the Regulations within three (3) years from the filing date of application. Otherwise, the application shall be **REFUSED** or the mark shall be **REMOVED** from the Register by the Director.
2. A certificate of registration shall remain in force for ten (10) years; provided, that the registrant shall file a **DAU** to that effect, or shall show valid reasons based on the existence of obstacles to such use, as prescribed by the Regulations, within one (1) year from the fifth (5<sup>th</sup>) anniversary of the date of registration, otherwise, the mark shall be **REMOVED** from the Register by the Office.
3. A Renewal DAU must be filed within one (1) year from the date of renewal of the registration, otherwise, the mark shall be removed from the Register.

### IPOPHL PRIVACY STATEMENT AS PER RA 10173 ALSO KNOWN AS "DATA PRIVACY ACT OF 2012" AND SIGNATURE

☒ Agree ☐ Disagree

By ticking the AGREE box and affixing my signature to the right, I understand that I am giving consent to the collection, storage, sharing and other necessary processing of the personal information contained in this application, freely and voluntarily, to the Intellectual Property Office of the Philippines (IPOPHL) and its partners, in the exercise of its mandate as the lead government agency for the protection of IP rights and in compliance with the provisions of RA 10173, also known as, the Data Privacy Act of 2012.

I declare that all the information provided above are true and correct to the best of my knowledge.

Sign Here

SIGNATURE OVER PRINTED NAME

NOTE: Submission of this Application Form and Payment of the Filing Fees do not mean that the mark is registered as there are stages for the whole registration process. The mark shall be deemed registered upon completion of all the requirements under the IP Code and Trademark Regulations.

The address stated in these forms shall be used for sending notices and orders in cases filed with BLA.

# Trademark Application Process

## Trademarks/ Collective Marks Registration Process Overview

### Quick TIPS

- Determine your intellectual property (is it a **Trademark?**).
- Determine the goods and services you intend to use your trademark on.
- Prepare a copy of the mark for your application form.
- Complete the filing requirements.
- Pay the necessary fees.

### WHAT AFFECTS PROCESS DURATION

- Incomplete documents / requirements.
- Failure of the applicant to respond.
- With opposition.

With appeals:

- Appeal to the Director General

### Path to Registration

#### 1 Application for Registration of Trademark / Collective Marks

Cost: Filing Fee (per class)  
**Php 1,200.00** (Small Entity)  
or **Php 2,592.00** (Big Entity)

#### 2 Formality and Substantive Examination

#### 4 Issuance of Certificate of Registration

Cost: COR Fee  
**Php 570.00** (Small Entity)  
or **Php 1,200.00** (Big Entity)

#### 3 Publication for Opposition (for 30 days)

Cost: 1st Publication Fee  
**Php 900.00** (Small Entity)  
or **Php 960.00** (Big Entity)

#### 5 Publication of Registered Trademarks or Collective Marks

Cost: 2nd Publication Fee  
**Php 900.00** (Small Entity)  
or **Php 960.00** (Big Entity)

Term of Protection:  
**10 years** from registration date  
and renewable every 10 years.

Average processing time:  
**3.4 months**  
(based on 2019 TAT)

Minimum cost estimate  
per application per class (with LRF):  
**Php 3,600.00 (Small)**  
**Php 5,800.00 (Big)**

# Filing Fees ( **TRADEMARK** )

| Fee Code                        | Fee Desc                 | Unit | Unit Cost | Total Amount |
|---------------------------------|--------------------------|------|-----------|--------------|
| T151                            | Filing Fee (per Class)   | 2    | 1200.00   | 2400.00      |
| T153                            | Color, distinctiveness   | 2    | 280.00    | 560.00       |
| T211                            | Allow/Pub for Opposition | 1    | 900.00    | 900.00       |
| LRF                             | Legal Research Fund      | 1    | 38.60     | 38.60        |
| T O T A L AMOUNT DUE TO IPOPHIL |                          |      |           | 3898.60      |

| Fee Desc                        | Unit | Unit Cost | Total Amount |
|---------------------------------|------|-----------|--------------|
| Issuance Cert. of Reg.          | 1    | 570.00    | 570.00       |
| 2nd Pub.                        | 1    | 900.00    | 900.00       |
| Legal Research Fund             | 0    | 0.01      | 14.70        |
| T O T A L Amount DUE TO IPOPHIL |      |           | 1484.70      |



# **Required Documents ( Declaration of Actual Use (DAU))**

- Letter Request for DAU to IPOPHL
- Proofs (Photos) of the usage of the mark.

# Filing Fees ( **Declaration of Actual Use (DAU)** )

| Filing of Declaration of Actual Use (DAU) |          |          |
|-------------------------------------------|----------|----------|
| 3rd year DAU (per class)                  | 900.00   | 1,920.00 |
| 5th year DAU (per class)                  | 1,100.00 | 2,400.00 |
| Renewal DAU (per class)                   | 1,100.00 | 2,400.00 |
| Mid-Renewal DAU (per class)               | 1,100.00 | 2,400.00 |
| plus 1% Legal Research Fund               |          |          |

# **Required Documents (Copyright)**

## **FOR INSTRUCTIONAL MATERIALS:**

- **BCRR Form (IPOP HL)**
- **BCRR Form - Transaction Form Supplemental Sheet  
(For the co-authors/creators)**
- **Deed of Assignment**
- **Identification Cards of the Authors/Creators**
- **Actual Work (Soft copy)**
- **Endorsement from QAA**

## **FOR COMPUTER PROGRAMS:**

- **BCRR Form (IPOP HL)**
- **BCRR Form - Transaction Form Supplemental Sheet  
(For the co-authors/creators)**
- **Accomplished Deed of Assignment for notarization**
- **Identification Cards of the Authors/Creators**
- **Source codes in Word format file (Soft copy)**



## TRANSACTION FORM

NOTE: Use "N/A" for fields that are not applicable. Recordation of copyright transfer/assignment, mortgage, etc. requires initial registration, if applicable.

|                                                              |                                                                                                                                                                                                                                                                                                                                                                                        |                                                                                                                                                                                                                                                                                            |
|--------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>Type of Application</b><br>(Please tick boxes that apply) | <input type="checkbox"/> Copyright / Related Rights Registration<br><input type="checkbox"/> Anonymous/Pseudonymous Work Registration<br><input type="checkbox"/> Correction of Entry in Copyright Registry<br><input type="checkbox"/> Registration of Resale Rights<br><input type="checkbox"/> Other Certifications: _____<br><input type="checkbox"/> No. of Certifications: _____ | <input type="checkbox"/> Certified True Copy of Copyright Certificate<br><input type="checkbox"/> Recordation of Copyright Transfer/Assignment, License, Mortgage, Sale, etc.<br><input type="checkbox"/> Recordation of Records (for lost original certificate of copyright registration) |
| <b>Submission Type</b>                                       | <input type="checkbox"/> Electronic Filing (email submission)<br><input type="checkbox"/> Through IPSCO (Indicate IPSCO-Region): _____<br><input type="checkbox"/> Through ITSO                                                                                                                                                                                                        | <input type="checkbox"/> Single Filing<br><input type="checkbox"/> Bulk Filing (QTY): _____ (minimum of 10 works of the same class only)                                                                                                                                                   |
| <b>Type of Applicant</b>                                     | <input type="checkbox"/> Author/Creator/Related Rights Holder<br><input type="checkbox"/> Agent                                                                                                                                                                                                                                                                                        | <input type="checkbox"/> Copyright Claimant/Transferee/Assignee/Mortgagee<br><input type="checkbox"/> Licensee<br><input type="checkbox"/> Heir(s)<br><input type="checkbox"/> New Owner (Resale)                                                                                          |

**APPLICANT INFORMATION** (For individual applicants, you may skip Name of Company/Government Agency/School)

|                                                                                                                           |                                                              |                       |
|---------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------|-----------------------|
| Surname                                                                                                                   | First Name                                                   | Middle Name           |
| Name of Company / Corporation / Government Agency / School                                                                |                                                              |                       |
| <input type="checkbox"/> Small Entity (Assets less than 100M) <input type="checkbox"/> Big Entity (Assets more than 100M) |                                                              |                       |
| Date of Birth (YYYY-MM-DD)                                                                                                | Civil Status (Single, Married, Widowed, Divorced, Separated) | Sex (Male, Female)    |
| Nationality                                                                                                               | Country of Residence                                         |                       |
| Address (Complete Street info, village, subdivision, barangay)                                                            |                                                              |                       |
| Municipality/City                                                                                                         |                                                              |                       |
| Province/State                                                                                                            | ZIP Code                                                     | Mobile/Contact Number |
| Email Address                                                                                                             |                                                              |                       |

**AUTHOR/ CREATOR/ PERFORMER INFORMATION** (Skip this if same as above). Include all author(s) / creator(s) using the supplemental sheet(s), if applicable

|                                                                |                                                              |                       |
|----------------------------------------------------------------|--------------------------------------------------------------|-----------------------|
| Surname                                                        | First Name                                                   | Middle Name           |
| Date of Birth (YYYY-MM-DD)                                     | Civil Status (Single, Married, Widowed, Divorced, Separated) | Sex (Male, Female)    |
| Nationality                                                    | Country of Residence                                         |                       |
| Address (Complete Street info, village, subdivision, barangay) |                                                              |                       |
| Municipality/City                                              |                                                              |                       |
| Province/State                                                 | ZIP Code                                                     | Mobile/Contact Number |
| Email Address                                                  |                                                              |                       |

**WORK/ CREATION/ PERFORMANCE INFORMATION** (For bulk applications, minimum of 10 works of the same class, use additional transaction forms)

|                                                                                                                                                             |                                                         |                                                                 |                                                                               |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------|-----------------------------------------------------------------|-------------------------------------------------------------------------------|
| Title                                                                                                                                                       | Date of Creation / Performance / Broadcast (YYYY-MM-DD) | Place of Creation / Performance / Broadcast (City/Municipality) | Classification of Work (Choose letter from the list at the back of this form) |
| Is the work a local or foreign submission?                                                                                                                  |                                                         |                                                                 |                                                                               |
| <input type="checkbox"/> Local <input type="checkbox"/> Foreign                                                                                             |                                                         |                                                                 |                                                                               |
| Copyright registered with the IPOPHL or the National Library of the Philippines (NLP)?                                                                      |                                                         |                                                                 |                                                                               |
| <input type="checkbox"/> NO <input type="checkbox"/> YES If yes, select which office <input type="checkbox"/> with IPOPHL <input type="checkbox"/> with NLP |                                                         |                                                                 |                                                                               |
| Is the work published? (If applicable)                                                                                                                      |                                                         |                                                                 |                                                                               |
| <input type="checkbox"/> NO <input type="checkbox"/> YES (Indicate publisher)                                                                               |                                                         |                                                                 |                                                                               |
| Is this a derivative work? (If applicable)                                                                                                                  |                                                         |                                                                 |                                                                               |
| <input type="checkbox"/> NO <input type="checkbox"/> YES (Indicate original work)                                                                           |                                                         |                                                                 |                                                                               |
| Is the work derived from an indigenous knowledge & system & practice (IKSP)?                                                                                |                                                         |                                                                 |                                                                               |
| <input type="checkbox"/> NO <input type="checkbox"/> YES (Indicate source)                                                                                  |                                                         |                                                                 |                                                                               |
| Is the work a product of a government funded research project?                                                                                              |                                                         |                                                                 |                                                                               |
| <input type="checkbox"/> NO <input type="checkbox"/> YES (Indicate Government Funding Agency)                                                               |                                                         |                                                                 |                                                                               |
| Is the work part of the regular duties of the author as an employee? (If applicable)                                                                        |                                                         |                                                                 |                                                                               |
| <input type="checkbox"/> NO <input type="checkbox"/> YES (Indicate employer)                                                                                |                                                         |                                                                 |                                                                               |
| Is the Author/creator/performer claiming copyright-related right for the entire work?                                                                       |                                                         |                                                                 |                                                                               |
| <input type="checkbox"/> YES <input type="checkbox"/> NO (Indicate part(s)/role(s))                                                                         |                                                         |                                                                 |                                                                               |

**DOCUMENTS SUBMITTED** (Please check only those that are applicable for this application)

|                                                                           |                                           |                                                  |                                                                                |
|---------------------------------------------------------------------------|-------------------------------------------|--------------------------------------------------|--------------------------------------------------------------------------------|
| <input type="checkbox"/> Electronic copy/photos of the work               | <input type="checkbox"/> Government ID    | <input type="checkbox"/> Deed of Assignment      | <input type="checkbox"/> Marriage/Birth Certificate (spouse or children heirs) |
| <input type="checkbox"/> Special Power of Attorney (for Agents)           | <input type="checkbox"/> Board Resolution | <input type="checkbox"/> Secretary's Certificate | <input type="checkbox"/> Other/s (please specify): _____                       |
| <input type="checkbox"/> IPOPHL/NLP Certificate of Copyright Registration |                                           |                                                  |                                                                                |

**IPOPHL PRIVACY STATEMENT AS PER RA 10173 (DATA PRIVACY ACT OF 2012) AND SIGNATURE**

☐ Agree ☐ Disagree

By ticking the AGREE box and affixing my signature to the right, I understand that I am giving consent to the collection, storage, sharing and other necessary processing of the personal information contained in this application, freely and voluntarily, to the Intellectual Property Office of the Philippines (IPOPHL) and its partners, in the exercise of its mandate as the lead government agency for the protection of IP rights and in compliance with the provisions of RA 10173, also known as, the Data Privacy Act of 2012.

I declare that all the information provided above is true and correct to the best of my knowledge.

Sign Here

Signature over printed name



## TRANSACTION FORM – SUPPLEMENTAL SHEET

**CO-AUTHOR / CREATOR INFORMATION**

|                                                                                       |                                                              |                       |
|---------------------------------------------------------------------------------------|--------------------------------------------------------------|-----------------------|
| Surname                                                                               | First Name                                                   | Middle Name           |
| Date of Birth (YYYY-MM-DD)                                                            | Civil Status (Single, Married, Widowed, Divorced, Separated) | Sex (Male, Female)    |
| Nationality                                                                           | Country of Residence                                         |                       |
| Address (Complete Street info, village, subdivision, barangay)                        |                                                              |                       |
| Municipality/City                                                                     |                                                              |                       |
| Province/State                                                                        | ZIP Code                                                     | Mobile/Contact Number |
| Email Address                                                                         |                                                              |                       |
| Is the Author/creator/performer claiming copyright-related right for the entire work? |                                                              |                       |
| <input type="checkbox"/> YES <input type="checkbox"/> NO (Indicate part(s)/role(s))   |                                                              |                       |

**CO-AUTHOR / CREATOR INFORMATION**

|                                                                                       |                                                              |                       |
|---------------------------------------------------------------------------------------|--------------------------------------------------------------|-----------------------|
| Surname                                                                               | First Name                                                   | Middle Name           |
| Date of Birth (YYYY-MM-DD)                                                            | Civil Status (Single, Married, Widowed, Divorced, Separated) | Sex (Male, Female)    |
| Nationality                                                                           | Country of Residence                                         |                       |
| Address (Complete Street info, village, subdivision, barangay)                        |                                                              |                       |
| Municipality/City                                                                     |                                                              |                       |
| Province/State                                                                        | ZIP Code                                                     | Mobile/Contact Number |
| Email Address                                                                         |                                                              |                       |
| Is the Author/creator/performer claiming copyright-related right for the entire work? |                                                              |                       |
| <input type="checkbox"/> YES <input type="checkbox"/> NO (Indicate part(s)/role(s))   |                                                              |                       |

**CO-AUTHOR / CREATOR INFORMATION**

|                                                                                       |                                                              |                       |
|---------------------------------------------------------------------------------------|--------------------------------------------------------------|-----------------------|
| Surname                                                                               | First Name                                                   | Middle Name           |
| Date of Birth (YYYY-MM-DD)                                                            | Civil Status (Single, Married, Widowed, Divorced, Separated) | Sex (Male, Female)    |
| Nationality                                                                           | Country of Residence                                         |                       |
| Address (Complete Street info, village, subdivision, barangay)                        |                                                              |                       |
| Municipality/City                                                                     |                                                              |                       |
| Province/State                                                                        | ZIP Code                                                     | Mobile/Contact Number |
| Email Address                                                                         |                                                              |                       |
| Is the Author/creator/performer claiming copyright-related right for the entire work? |                                                              |                       |
| <input type="checkbox"/> YES <input type="checkbox"/> NO (Indicate part(s)/role(s))   |                                                              |                       |

**CO-AUTHOR / CREATOR INFORMATION**

|                                                                                       |                                                              |                       |
|---------------------------------------------------------------------------------------|--------------------------------------------------------------|-----------------------|
| Surname                                                                               | First Name                                                   | Middle Name           |
| Date of Birth (YYYY-MM-DD)                                                            | Civil Status (Single, Married, Widowed, Divorced, Separated) | Sex (Male, Female)    |
| Nationality                                                                           | Country of Residence                                         |                       |
| Address (Complete Street info, village, subdivision, barangay)                        |                                                              |                       |
| Municipality/City                                                                     |                                                              |                       |
| Province/State                                                                        | ZIP Code                                                     | Mobile/Contact Number |
| Email Address                                                                         |                                                              |                       |
| Is the Author/creator/performer claiming copyright-related right for the entire work? |                                                              |                       |
| <input type="checkbox"/> YES <input type="checkbox"/> NO (Indicate part(s)/role(s))   |                                                              |                       |



## DEED OF ASSIGNMENT

THIS DEED OF ASSIGNMENT made this \_\_\_\_\_ between \_\_\_\_\_(authors), resident of \_\_\_\_\_, hereinafter referred as the ASSIGNORS of the one part;

AND

University of Science and Technology of Southern Philippines, at ~~Lapasan~~ Cagayan de Oro City Philippines hereinafter referred as the ASSIGNEE of the other part;

WHEREAS, the ASSIGNEE has to engaged, \_\_\_\_\_ (authors) all in legal age, as employees of the University of Science and Technology of Southern Philippines (USTP), Cagayan de Oro Campus, the ASSIGNOR as the instructors of USTP, Cagayan de Oro Campus for carrying out the development of \_\_\_\_\_.

AND WHEREAS, it is agreed by and between the ASSIGNEE and the ASSIGNORS that whatever inventions/ discoveries/ ideas/ theories and concepts developed and/or enunciated by the ASSIGNOR during the period of his/her tenure with the ASSIGNEE shall be the exclusive property of the ASSIGNEE.

NOW, THIS DEED WITNESSETH it is hereby agreed by and between the parties as follows:

In consideration of his/her employment, the ASSIGNOR hereby agrees with the ASSIGNEE that all COPYRIGHT RIGHTS arising out of the developmental work carried out by the him/her shall accrue to the ASSIGNEE and all designs/ discoveries/ ideas/ theories and concepts so developed and enunciated by the EMPLOYEE shall be the sole and absolute property of the ASSIGNEE and it shall be lawful to deal with such discoveries/ideas/theories and concepts in any manner whatsoever as the ASSIGNEE may deem fit.

The ASSIGNOR hereby agrees and undertakes with the ASSIGNEE that he/she shall, if and whenever required by the ASSIGNEE join with the University in applying for the registration for copyright in respect of such design/ discoveries/ ideas/ theories and concepts or other similar production, both in Philippines and any part of the world, for the said inventions and shall on request by and at the cost of the University execute and do all instruments and things necessary to vest the property in the said inventions/ discoveries/ ideas/ theories and concepts and any application for registration of



Copyright thereof or other similar production as aforesaid, hat may be obtained in respect thereof, by the University or any person or persons appointed by the University, together with rights which may belong or accrue thereto.

IN WITNESS WHEREOF, the ASSIGNEE and the ASSIGNOR has superscribed their respective hands to this DEED OF ASSIGNMENT in Cagayan de Oro City on the day, month and year first above written.

SIGNED AND DELIVERED BY:

ASSIGNOR

SIGNED AND DELIVERED BY:

**ENGR. GLADDY CHRISTIE H. COMPASAN**  
ON BEHALF OF THE ASSIGNEE / AFFIANT

WITNESS:

**DR. VENESSA A. GARCIA**



Subscribed and sworn to before me this \_\_\_\_\_ in Cagayan de Oro City, Misamis Oriental, Philippines, 9000, affiant exhibiting to me his/her \_\_\_\_\_ issued on \_\_\_\_\_ at Cagayan de Oro City, Misamis Oriental, Philippines, 9000.

\_\_\_\_\_  
Notary Public

Doc No. \_\_\_\_\_:

Page No. \_\_\_\_\_:

Book No. \_\_\_\_\_:

Series of 20 \_\_\_\_\_:

# Copyright Application Process

Online Application via email to Bureau of Copyright and Related Rights



Evaluation of the completeness of requirements/forms



Compliance of the findings or incomplete documents



Courier of hard copies



Issuance of Certificate of Registration



# Filing Fees ( **Copyright** )

| Fee Description                                  | Cost            |
|--------------------------------------------------|-----------------|
| Fund-in Trust for NLP                            | 200             |
| Copyright basic fee (Regions)                    | 350             |
| Recordation Transfer/Assignment<br>(Region/IPSO) | 350             |
| Legal Research fund                              | 10              |
| Notarial fee for DOA                             | 200             |
| <b>TOTAL</b>                                     | <b>1,110.00</b> |

# THANK YOU FOR LISTENING!

*Technology Promotions & Commercialization Office*

*USTP-System*



**TPCO**  
TECHNOLOGY PROMOTIONS &  
COMMERCIALIZATION OFFICE



University of Science and Technology of Southern Philippines,  
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[www.ustp.edu.ph/tpco](http://www.ustp.edu.ph/tpco)



P r o t e c t

P r o m o t e

C o m m e r c i a l i z e